service: § 3.96 (a) *Using misleading name—Goods—Nature:* § 3.96 (a) *Using misleading name—Goods—Qualities or properties.* I. In connection with the offering for sale, sale or distribution of respondent's medicinal preparation formerly known as "Nature Nervine" and now as "Herbaline," or any other preparation or preparations of substantially similar composition or possessing substantially similar properties, whether sold under the same name or any other name or names, disseminating, etc., any advertisements by means of the United States mails, or in commerce, or by any means to induce, etc., directly or indirectly, purchase in commerce, etc., of said preparation, which advertisements represent directly or by inference: (a) that respondent's preparation constitutes a competent or effective treatment for, or has any significant therapeutic value in the treatment of, nervousness, nervous afflictions, nervous dyspepsia, neurasthenia, nervous debility, exhaustion, body weakness, anemia, melancholia, depression, insomnia, palpitation of the heart, stomach troubles, lack of energy, bad dreams, weakness of mind, painful nerves, such mental conditions as dread and fear, or has any beneficial effect upon the nerve centers; or (b) that the said preparation forms blood, strengthens the nerves, builds the brain, invigorates the body or promotes health generally; and, II, in connection with the offering for sale, sale, and distribution of respondent's product, in commerce, using the trade name "Nature Nervine" or any other name of similar import; prohibited. (Sec. 5, 38 Stat. 719, as amended by sec. 3, 52 Stat. 112; 15 U.S.C., sec. 45b) [Cease and desist order, Professor Valentine Greenewald, Docket 5114, October 1, 1945]

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 1st day of October, A. D. 1945.

In the Matter of Valentine Greenewald, an Individual Trading as Professor Valentine Greenewald

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission and the answer of the respondent, in which answer respondent admits all of the material allegations of fact set forth in said complaint and states that he waives all intervening procedure and further hearing as to said facts, and the Commission having made its findings as to the facts and conclusion that said respondent has violated the provisions of the Federal Trade Commission Act:

It is ordered, That respondent, Valentine Greenewald, individually, trading as Professor Valentine Greenewald, or under any other name, his representatives, agents and employees, directly or through any corporate or other device, in connection with the offering for sale, sale or distribution of his medicinal preparation formerly known as "Nature Nervine" and now as "Herbaline", or any other preparation or preparations of substantially similar composition or possessing substantially similar properties, whether sold under the same name or any other name or names, do forthwith cease and desist from directly or indirectly:

1. Disseminating or causing to be disseminated any advertisement, by means of the United States mails, or by any means in commerce, as "commerce" is defined in the Federal Trade Commission Act, which represents directly or by inference:

a. That respondent's preparation constitutes a competent or effective treatment for, or has any significant therapeutic value in the treatment of, nervousness, nervous afflictions, nervous dyspepsia, neurasthenia, nervous debility, exhaustion, body weakness, anemia, melancholia, depression, insomnia, palpitation of the heart, stomach troubles, lack of energy, bad dreams, weakness of mind, painful nerves, such mental conditions as dread and fear, or has any beneficial effect upon the nerve centers.

b. That the said preparation forms blood, strengthens the nerves, builds the brain, invigorates the body or promotes health generally.

2. Disseminating or causing to be disseminated any advertisement by any means for the purpose of inducing or which is likely to induce directly or indirectly the purchase of said preparation in commerce, as "commerce" is defined in the Federal Trade Commission Act, which advertisement contains any representation prohibited by paragraph 1 hereof.

It is further ordered, That the respondent, his representatives, agents, and employees, directly or through any corporate or other device, in connection with the offering for sale, sale, and distribution of his product, in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from using the trade name "Nature Nervine" or any other name of similar import.

It is further ordered, That the respondent shall, within sixty (60) days after service upon him of this order, file with the Commission a report in writing, setting forth in detail the manner and form in which he has complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 45-19665; Filed, Oct. 24, 1945; 11:28 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs

[T. D. 51332]

PART 4—VESSELS IN FOREIGN AND DOMESTIC TRADES

WAIVER OF COASTWISE LAWS TO PERMIT CANADIAN VESSELS TO TRANSPORT PASSENGERS BETWEEN POINTS IN ALASKA

OCTOBER 22, 1945.

Waiving compliance with the provisions of section 8 of the act of June 19, 1886, as amended.

Upon the written recommendation of the Administrator of the War Shipping Administration and pursuant to the authority vested in me by the provisions of section 501 of the Second War Powers Act, 1942 (50 U.S.C. App. Sup. 635), as extended by the act of December 20, 1944 (50 U.S.C. App. Sup. 645), I hereby waive compliance with the provisions of section 8 of the act of June 19, 1886, as amended (46 U.S.C. 289), to the extent necessary to permit the transportation of passengers on Canadian vessels between points in Alaska during the period between November 1, 1945, and December 31, 1945. I deem that such action is necessary in the conduct of the war.

If the transportation of any passenger on a Canadian vessel is not completed on or before midnight on December 31, 1945, the provisions of this order will not relieve the vessel concerned from the penalty prescribed by section 8 of the act of June 19, 1886, as amended (46 U.S.C. 289).

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-19655; Filed, Oct. 24, 1945; 10:58 a. m.]

[T. D. 51333]

PART 8—LIABILITY FOR DUTIES, ENTRY OF IMPORTED MERCHANDISE

INVOICE REQUIREMENTS

Section 8.15, Customs Regulations of 1943, as amended by T. Ds. 51036, 51105, and 51222, relating to the invoice requirements, further amended.

Section 8.15 (a), Customs Regulations of 1943 (19 CFR, Cum. Supp., 8.15 (a)), as amended by T. Ds. 51105 and 51222, is hereby further amended by inserting the words "and fruits" after the word "Vegetables" in item 22.

Section 8.15 (b), Customs Regulations of 1943 (19 CFR, Cum. Supp., 8.15 (b)), as amended by T. Ds. 51036 and 51222, is hereby further amended by inserting, after the word "vegetables" and before the comma in item 5, the following: "and fruits in their natural state".

(Sec. 484, 46 Stat. 722; sec. 12, 52 Stat. 1083; secs. 498, 624, 46 Stat. 728, 759; 19 U.S.C. 1484, 1498, 1624)

[SEAL] W. R. JOHNSON,
Commissioner of Customs.

Approved: October 22, 1945.

HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-19656; Filed, Oct. 24, 1945; 10:58 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Reg. S-4]

PART 101—FOREIGN SERVICE PERSONNEL

MISCELLANEOUS AMENDMENTS

Pursuant to the authority vested in me by R.S. 161 (5 U.S.C. 22); by Executive Order 9452 of June 26, 1944 (3 CFR, 1944

Supp., 66), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), sections 1, 2, 3, 4, 5, 6 and 8 of this regulation are prescribed to constitute sections 1, 2, 3, 7, 8, 19 and 30 of Chapter I of the Foreign Service Regulations, in place of the present language of said sections (22 CFR, Cum. Supp., 101.1, 101.2, 101.3, 101.7, 101.8, 101.19 and 101.30), and section 7 of this regulation is prescribed in addition to, but not in place of, the existing provisions of said Regulations, as section 28a of Chapter I of said regulations.

§ 101.1 *Officers and employees of the Foreign Service*—(a) *Officers of the Foreign Service.* The term "Officers of the Foreign Service" shall denote:

(1) Ambassadors and ministers—diplomatic representatives appointed to serve at the pleasure of the President.

(2) Foreign Service officers—permanent officers in the Foreign Service below the grade of minister who are subject to promotion on merit and who may be appointed to either diplomatic or consular positions.

(3) Vice consuls—officers or employees, other than Foreign Service officers, commissioned by the Secretary of State to perform consular duties.

(4) Consular agents—consular officers subordinate to principal consular officers exercising the powers vested in them and performing the duties prescribed for them by regulation of the President at posts or places different from those at which such principal consular officers are located.

(5) Administrative officers — officers charged with the performance of administrative duties and whose appointment as such is authorized by law.

(6) Nonpermanent officers—(i) Persons holding positions in the Department of State or in any other department or agency of the United States assigned for special duty as officers of the Foreign Service for nonconsecutive periods of not more than four years; and (ii) professional or technical officers appointed to serve for a period of not to exceed the duration of an emergency declared by the President or not more than six months thereafter.

(b) *Employees of the Foreign Service.* The term "employees of the Foreign Service" shall denote clerks, other than vice consuls, all administrative personnel whether classified as officers or not, and miscellaneous employees in Foreign Service establishments.

§ 101.2 *Governing bodies in the Foreign Service*—(a) *Board of Foreign Service Personnel.* The Board of Foreign Service Personnel for the Foreign Service shall, in addition to performing those duties imposed upon it by statute, act in an advisory capacity to the Secretary of State in matters pertaining to the assignments and changes in status of officers of the Foreign Service.

(b) *Division of Foreign Service Personnel.* The Division of Foreign Service Personnel, in the Department of State, shall, in addition to performing those duties imposed upon it by law, coordinate and maintain the personnel reports and records of officers and employees of the Foreign Service.

§ 101.3 *Appointments of officers and employees in the Foreign Service*—(a) *Ambassadors and ministers.* Ambassadors and ministers are appointed by the President, by and with the advice and consent of the Senate. (Const., art. II, sec. 2.)

(b) *Foreign Service officers.* Appointments to the position of Foreign Service officer are made by the President of the United States, by and with the advice and consent of the Senate, either after examination or after five years of continuous service in an executive or quasi-executive position in the Department of State, by transfer therefrom. No candidate shall be eligible for examination for Foreign Service officer who is not an American citizen and who shall not have been such at least 15 years. (22 U.S.C. 5.)

(1) *Examinations for the Foreign Service.* Examinations for the Foreign Service shall be given in accordance with rules and regulations prescribed by a Board of Examiners, composed of three Assistant Secretaries of State designated by the Secretary of State, the Director of the Office of the Foreign Service, Department of State, an officer of the Department of Commerce designated by the Secretary of Commerce and acceptable to the Secretary of State, an officer of the Department of Agriculture designated by the Secretary of Agriculture and acceptable to the Secretary of State, the Chief of the Division of Foreign Service Personnel, Department of State, and the Chief Examiner of the Civil Service Commission. Any member of the Board of Examiners may, when he deems it necessary, designate another officer of his department acceptable to the Secretary of State to serve for him on the Board.

(2) *Appointments after 5 years of service in the Department of State.* Appointments after 5 years of continuous service in the Department of State, as above stated, may be made to positions in any class in the Foreign Service on the basis of recommendations submitted by the Board of Foreign Service Personnel.

(c) *Vice consuls.* Vice consuls who are not Foreign Service officers shall be commissioned by the Secretary of State.

(d) *Consular agents.* Consular agents shall be commissioned by the Secretary of State upon the receipt of nominations from the officer in charge of the particular district.

(e) *Employees.* Clerks and other employees of the Foreign Service shall be appointed by the Secretary of State, or by subordinates of the Secretary of State authorized by him, under such regulations as he may prescribe, to make such appointments. (E.O. 9537, Apr. 11, 1945.)

* * * * *

§ 101.7 *Bonds of officers and employees of the Foreign Service.* Every secretary, consul general, consul, vice consul or Foreign Service officer, every consular agent, every ambassador or minister who will render accounts or certify vouchers for payment, every authorized certifying officer, every officer who disburses while in the employ of the Department of State regardless of how or by whom he is authorized or delegated authority to disburse, and every other officer or employee of the Foreign Service who is instructed to do so by the Department or the officer in charge before he enters upon the duties of his office, shall give to the United States a bond executed on Form No. 352, Foreign Service, in a penal sum of $5,000 or such larger amount as the Department shall indicate in individual cases. (See Form 356, Treasury Department.)

All bonding companies holding certificates of authority from the Secretary of the Treasury under the acts of Congress of August 13, 1894 and March 23, 1910 (6 U.S.C. 6–13 inclusive) are hereby approved as acceptable sureties on these bonds. If any surety other than one of those approved herein is desired by an officer or employee, the approval by the Secretary of State of such surety shall be obtained before executing the bond.

The Department will examine periodically (at least once every two years) the bond of each officer or employee to ascertain the sufficiency of the surety thereon, at which time it will be determined whether the surety and penalty are sufficient. If the penalty or surety is not sufficient the officer will be notified to file a new bond with sufficient surety and in the penalty then prescribed. Upon relinquishing duties requiring a bond with a penalty in excess of the minimum the officer or employee may request the Department to review his bond and refix the penalty, and if the penalty is refixed in another amount the officer or employee shall file a new bond. (6 U.S.C. 2.)

§ 101.8 *Assignment of officers and employees of the Foreign Service*—(a) *Ambassadors and ministers.* Ambassadors and ministers are appointed to serve at particular posts.

(b) *Foreign Service officers.* A Foreign Service officer may be assigned by the Secretary of State to duty at either a diplomatic or a consular post or both, at the discretion of the President, or, without loss of class or salary, for duty in the Department of State or in any other agency of the Government in the discretion of the Secretary of State, such assignment to be for a period of not more than three years unless the public interest demands further service when such assignment may be extended for a period not to exceed one year, upon the completion of which four-year assignment and reassignment to the field he may not again be assigned for duty in the Department of State or in any other department or agency of the Government until the expiration of at least three years of field duty.

(c) *Vice consuls and employees.* Vice consuls and employees in the Foreign Service shall be assigned by the Secretary of State, in his discretion, to serve at designated posts.

* * * * *

§ 101.19 *Prohibitions against officers and employees engaging in business.* Officers and employees of the Foreign Service, except consular agents, are forbidden to transact, engage in, or have any interest in any business to, from, or